

Icici Bank Limited vs Mr. Arjun Prasad Panthi on 24 January, 2025

DLCT010008532023

IN THE COURT OF MS. ILLA RAWAT :
DISTRICT JUDGE COMMERCIAL COURT- 03:
(CENTRAL) : TIS HAZARI : DELHI.

CS (COMM) No. 117/2023
CNR NO. : DLCT010008532023

In the matter of :-

ICICI Bank Limited
Through its Authorized Officer,
Sh. Rajneesh Kumar,
Having its registered office at :
ICICI Bank Tower, Near Chakli Circle,
Old Padra Road, Vadodara, India,
PINCODE-390007,
Having its Branch Office At :-
Rani Jhansi Road, Block E-1, Jhandewalan Extension,
New Delhi-110055.

...Plaintiff

Versus

Mr. Arjun Prasad Panthi,
S/o. Lekh Nath Panthi,
R/o. 291, Top Floor, Block-B,
Uttam Nagar, West Delhi,
Delhi-110059.
Mobile: 9899940516
PAN No.:ARMPP9559J

...Defen

Date of Institution :	17.01.2023
Order reserved on :	24.01.2025
Order passed on :	24.01.2025

CS (COMM) No. 117/2023

ICICI Bank Ltd. Vs. Arjun Prasad Panthi

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signe
ILLA ILLA RA
Date:
RAWAT 2025.01

SUIT FOR RECOVERY OF Rs. 11,58,270/-

EX-PARTE JUDGMENT

1.

Vide this judgment I shall dispose off the suit for recovery of Rs. 11,58,270/-, filed by plaintiff against the defendant.

2. Brief facts of the case are that plaintiff is engaged in the business of advancing various loans like term loan, auto loan, home loans etc., and other banking business. The present suit has been instituted through Shri Rajneesh Kumar, who has been duly authorized by way of power of attorney and is competent to file, sign and verify the plaint and to institute the present suit.

3. It is averred in the plaint that defendant approached the plaintiff bank for grant of four wheeler loan and personal loan. The request made by defendant was accepted and a loan for a sum of Rs. 7,25,000/- and Rs. 4,04,000/- respectively (the details of which are given in para 5 of the plaint), was sanctioned under loan cum hypothecation Scheme for purchase of a vehicle make "TUV 300". The defendant executed loan documents i.e. preliminary credit facility application form dated 04.02.2021, personal loan credit facility application form dated 24.02.2021, credit facility application for dated 24.02.2021 and unattested deed of hypothecation dated 24.02.2021, in favour of the plaintiff bank. The vehicle of the defendant was registered with the registration authority with registration No. DL12CN5571 and the Digitally signed by ILLA ILLA RAWAT Date:

RAWAT 2025.01.25 16:25:36 +0530 same was hypothecated in favour of the plaintiff bank in terms of deed of hypothecation executed on 24.02.2021 by defendant, in favour of plaintiff bank.

4. After availing the loan facilities, the defendant failed to adhere to the financial discipline in payment of the loan amount despite repeated requests, notices and messages through SMS and email. The plaintiff bank tried its level best to recover the loan amount but defendant failed to clear the outstanding amount and thus plaintiff bank issued a recall notice dated 18.02.2022 but despite issuance of said notice, the defendant neither replied to the notice nor paid the outstanding amount. As per the statement of account maintained by plaintiff bank in ordinary course of its business, the defendant is liable to pay a sum of Rs. 7,35,533/- as on 06.05.2022 towards car loan account no. LUDEL00043278480 and a sum of Rs. 4,22,740/- towards personal loan account no. SPDEL00043278486. Since defendant failed to clear the outstanding amount, plaintiff bank has instituted the instant suit for recovery of Rs. 11,58,270/- as on 06.05.2022, along with pendente lite and future interest @ 14.51% p.a. till payment and / or realization of the decretal amount in favour of plaintiff.

5. Vide order dated 23.03.2023 plaintiff's application U/o XL Rule 1 r/w Section 151 CPC was allowed and a receiver was appointed ex-parte to take into possession the hypothecated vehicle i.e. vehicle bearing no. DL12CN5571. The plaintiff has filed receiver report dated 02.08.2023, as per which, the vehicle was not traceable.

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6. The defendant could not be served through ordinary process and was served through publication in newspaper 'Dainik Jagran' dated 02.03.2024. Since defendant neither appeared nor filed any Written Statement within the period stipulated under Commercial Courts Act despite service, opportunity to file Written Statement on his behalf was closed on 06.12.2024. He was also proceeded ex-parte vide order dated 24.01.2025.

7. In order to prove its case, plaintiff bank has examined Sh. Rajneesh Kumar, AR of plaintiff bank, as PW-1. He has reiterated the facts of plaint in his affidavit Ex.PW-1/A and relied upon following documents:-

Sr. Document
No.

Exhibit No.

1. Copy of power of attorney in favour of Ex.PW-1/1 PW-1 (OSR)
2. Original Preliminary Credit Facility Ex.PW-1/2 Application Form dated 04.02.2021 and (colly) Personal Loan Credit Facility Application Form dated 24.02.2021
3. Original Credit Facility Application Ex.PW-1/3 Form dated 24.02.2021
4. Unattested Deed of Hypothecation dated Ex. PW-1/4 24.02.2021
5. The printout of registration details Ex.PW-1/5 obtained from the "Vahaan" website
6. The office copy of loan recall notice Ex.PW-1/6 & dated 18.02.2022 and postal receipt Ex.PW-1/7, dated 21.02.2022 respectively.
7. The printout of foreclosure letter dated Ex.PW-1/8 06.05.2022, for car loan account
8. The printout of statement of account of Ex.PW-1/9 defendant dated 06.05.2022, for car loan account Digitally signed by ILLA ILLA RAWAT Date:

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9. The printout of foreclosure letter dated Ex. PW-1/10 06.05.2022, for personal loan account

10. The printout of statement of account of Ex. PW-1/11 defendant dated 06.05.2022, for personal loan account

11. Certificate U/s 65B of the Evidence Act, Ex.PW-1/12

12. Certificate U/s 2A of the Banker's Ex.PW-1/13 Books of Evidence Act,1891

8. The PW-1 deposed that defendant had made last payment on 30.11.2021 for sum of Rs. 17,103/-, towards vehicle loan and a sum of Rs. 9,531/- on 30.09.2021, towards personal loan. He further deposed that the defendant had paid a sum of Rs. 1,19,721/- towards vehicle loan and Rs. 57,186/- towards personal loan, till date of his deposition, and that the defendant did not make any payment towards his dues, during pendency of the case.

9. I have heard the learned counsel for plaintiff and also perused the record carefully.

10. The instant case has been filed by the plaintiff for recovery of Rs. 11,58,270/- (Rs. 7,35,533/- towards vehicle loan and Rs. 4,22,740/- towards personal loan). The PW-1 has proved his authority to depose vide Power of Attorney Ex. PW-1/1. He deposed that he is fully conversant with the facts of the case on the basis of record maintained by the bank. The plaintiff has placed on record series of documents executed by defendant at the time of grant of the loan facility. The PW-1 has placed on record the original preliminary Credit Facility Application form dated 04.02.2021 and personal Loan Credit Facility Application ILLA by ILLA RAWAT Date:

RAWAT 2025.01.25 16:26:09 +0530 Form dated 24.02.2021 as Ex. PW-1/2 (colly) and unattested Deed of Hypothecation dated 24.02.2021 as Ex. PW-1/3. The said documents reflects a contract between the parties. The plaintiff bank sanctioned vehicle loan of Rs.7,25,000/- and Rs. 4,04,000/- towards personal loan to defendant, the details of which are given in para 5 of evidence affidavit of PW-1, Ex. PW-1/A. The PW-1 deposed that defendant had made last payment on 30.11.2021 for sum of Rs. 17,103/-, towards vehicle loan and a sum of Rs. 9,531/- on 30.09.2021, towards personal loan. He further deposed that the defendant had paid a sum of Rs. 1,19,721/- towards vehicle loan and Rs. 57,186/- towards personal loan, till date of his deposition, and that the defendant did not make any payment towards his dues, during pendency of the case.

11. The suit has been filed within a period of limitation as per Statements of account dated 06.05.2022, Ex. PW-1/9 & Ex. PW-1/11. The PW-1 has further proved that a loan recall notice dated 18.02.2022, Ex.PW-1/6 was given to the defendant for paying the outstanding dues and filed postal receipt dated 21.02.2022, Ex. PW-1/7. The testimony of PW-1 remained unchallenged and unrebutted and hence there is no reason to disbelieve the testimony of PW-1 and unrebutted and unchallenged documents of loans proved on record by the plaintiff.

12. As per the prepayment schedule / foreclosure statements, Ex.PW-1/8 & Ex. PW-1/10, bank claimed the following amount:-

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2025.01.25 16:26:17 Amount payable Amount payable towards vehicle loan towards personal loan account no. account no.

	LUDEL00043278480 (Rs.)	SPDEL00043278486 (Rs.)
Principal outstanding (Rs.)	666,369.00	3,76,306.00
Late payment penalty (Rs.)	8,585.00	5,775.00
Cheque bouncing charges and other charges (Rs.)	5,310.00	5,310.00
Interest for the month (Rs.)	1,211.00	675.00
Prepayment charges @ 5.9% on outstanding principal (Rs.)	39,315.77	22,202.06
Interest on pending installment (Rs.)	54,058.00	34,674.00
Cashback Amount (Rs.)	0.00	0.00
Refunds (Rs.)	0.00	0.00
Total amount payable (Rs.)	7,74,848.77	4,44,942.06

13. During arguments, learned counsel for the plaintiff fairly concedes that though the bank has charges a sum of Rs.

39,315.77p (for vehicle loan) and Rs. 22,202.06 (for personal loan), towards the prepayment charges @ 5.9% on outstanding principal, yet since the same were not part of the agreement, plaintiff bank has not claimed the same. It is also noteworthy that in the foreclosure notice, bank also advised the borrower to make stop payment request for the next installment and in case next month's installment was debited from his account, the same was to be refunded subject to clearance. As the bank has foreclosed the account of its own, bank is even otherwise not entitled for the charges of Rs. 55,315/-. After deducting the said amount, defendants are liable to pay a sum of Rs. 11,58,273/- (i.e. Rs. 7,35,533/- + Rs. 4,22,740/-).

14. The plaintiff has claimed interest @ 14.51% per annum till realization of the decretal amount, I am of the view Digitally signed by ILLA ILLA RAWAT Date:

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that ends of justice will be met if the simple, pendente lite and future interest be awarded @ 9% per annum on the principal amount i.e. Rs. 10,42,675/- (Rs. 6,66,369 + Rs. 3,76,306) from the date of filing of the suit i.e. 17.01.2023, till its realization, ordered accordingly.

15. R E L I E F:-

In view of the above, I hereby pass an ex-parte money decree in the sum of Rs. 11,58,273/- (Rupees Eleven Lakhs Fifty Eight Thousand Two Hundred and Seventy Three only) in favour of the plaintiff and against the defendant, with simple interest @ 9% per annum on the principal amount i.e. Rs.

10,42,675/- (Rs. 6,66,369 + Rs. 3,76,306) from the date of filing of the suit i.e. 17.01.2023 till the realization of the amount.

16. In view of the above, the suit is decreed with cost.

Decree sheet be prepared accordingly. File be consigned to record room after due compliance. Digitally signed by ILLA ILLA RAWAT Date:

RAWAT 2025.01.25 Announced in the open Court 16:26:34 +0530 on 24th January, 2025 (ILLA RAWAT) District Judge Commercial Court-03 Central District, THC, Delhi.

CERTIFICATE Certified that the judgment contains 8 pages and each page has been signed by me. The judgment was pronounced on 24.01.2025 in open court and is being checked, digitally signed and uploaded on 25.01.2025. ILLA Date:

RAWAT 2025.01.25 16:26:39 +0530 (ILLA RAWAT) District Judge Commercial Court-03 Central District, THC, Delhi.